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WP(C) No. 653 of 2019

A. Brajakumar Sharma

....Petitioner

-Versus-

State of Manipur & 2 Ors

...Respondents

BEFORE
HON'BLE MR. JUSTICE LANUSUNGKUM JAMIR

20.2.2020

Heard Mr.M.Devananda, learned counsel for the petitioner as well as Mr.Y.Ashang, learned GA for all the respondents.

The petitioner has filed the present writ petition with the following prayers:

“(i) Admit the writ petition and issue Rule nisi calling upon the respondents to show cause as to why a writ in the nature of Certiorari or Mandamus should not be issued for quashing/setting aside the impugned order dated 12.8.2011 (at Annexure-A/3) and the order dated 29.12.2016 (at Annexure-A/6) as it is violative of Article 14 of the Constitution of India and has discriminated the petitioner illegally and arbitrarily, in view of the Judgment dated 11.7.2019 passed in Civil Appeal No.10857 of 2016 by the Hon’ble Supreme Court of India in the facts and circumstances of the present petition;

(ii) To show cause as to why a writ in the nature of Certiorari/Mandamus should not be issued for directing the respondents to allow the petitioner to enjoy the pension as Selection Grade Lecturer from the date of retirement calculating in the pay scale of Selection Grade Lecturer under the 6th UGC Scale for selection Grade Lecturer, in view of the Judgment dated 11.7.2019 passed in Civil Appeal No.10857 of 2016 by the Hon’ble Supreme Court of India;

(iii) *Call for the records and make the Rule absolute;*

(iv) *Pass any such further orders/directions which the Hon'ble Court may deem fit and proper in the facts and circumstances of the present petition."*

The petitioner retired as Senior Selection Grade Lecturer, Government College, w.e.f. 31.3.1996, now re-designated as Associate Professor. The petitioner is aggrieved by the order dated 29.12.2016 issued by the Commissioner (Higher & Technical Education), whereby it has been clarified that at the time of petitioner's superannuation on 31.3.1996 as Selection Grade Lecturer of Government College, there was no post of Lecturer of any Grade under the designation of Assistant Professor/Associate Professor/Professor etc and therefore, the claim of the petitioner was found to be baseless and not justified and the claim for getting revised pension benefit of PB-4: Rs.37,400-67,000/- with AGP of Rs.9000/- of Associate Professor of Government College under the 6th ROP was found to be not justified.

It is the case of the petitioner that he is covered by the judgment dated 11.7.2019 passed by the Hon'ble Supreme Court in Civil Appeal No.10857 of 2016 (**All Manipur Pensioners Association by its Secretary Vs The State of Manipur & Ors**).

Mr.Y.Ashang, learned GA fairly submits that the case of the petitioner is covered by the judgment dated 11.7.2019 passed in Civil Appeal No.10857 of 2016.

The Hon'ble Supreme Court in the case of **All Manipur Pensioners Association by its Secretary Vs The State of Manipur & Ors**, particularly at para 8, and 9 has held as under:

"8. Even otherwise on merits also, we are of the firm opinion that there is no valid justification to create two classes, viz, one who retired pre-1996 and another who

retired post-1996, for the purpose of grant of revised pension. In our view, such a classification has no nexus with the object and purpose of grant of benefit of revised pension. All the pensioners form a one class who are entitled to pension as per the pension rules. Article 14 of the Constitution of India ensures to all equality before law and equal protection of laws. At this juncture it is also necessary to examine the concept of valid classification. A valid classification is truly a valid discrimination. It is true that Article 16 of the Constitution of India permits a valid classification. However, a very classification must be based on a just objective. The result to be achieved by the just objective presupposes the choice of some for differential consideration/treatment over others. A classification to be valid must necessarily satisfy two tests. Firstly, the distinguishing rationale has to be based on a just objective and secondly, the choice of differentiating one set of persons from another, must have a reasonable nexus to the objective sought to be achieved. The test for a valid classification may be summarized as a distinction based on a classification founded on an intelligible differential, which has a rational relationship with the object sought to be achieved. Therefore, whenever a cut-off date (as in the present controversy) is fixed to categorize one set of pensioners for favourable consideration over others, the twin test for valid classification or valid discrimination therefore must necessarily be satisfied. In the present case, the classification in question has no reasonable nexus to the objective sought to be achieved while revising the pension. As observed hereinabove, the object and purpose for revising the pension is due to the increase in the cost of living. All the pensioners form a single class and therefore such a classification for the purpose of grant of revised pension is unreasonable, arbitrary, discriminatory and violative of Article 14 of the Constitution of India. The State cannot arbitrarily pick and choose from amongst similarly situated persons, a cut-off date for extension of benefits especially pensionary benefits. There has to be a classification founded on some rational principle when similarly situated class is differentiated for grant of any benefit.

8.1 As observed hereinabove, and even it is not in dispute that as such a decision has been taken by the

State Government to revise the pension keeping in mind the increase in the cost of living. Increase in the cost of living would affect all the pensioners irrespective of whether they have retired pre-1996 or post-1996. As observed hereinabove, all the pensioners belong to one class. Therefore, by such a classification/cut-off date the equals are treated as unequals and therefore such a classification which has no nexus with the object and purpose of revision of pension is unreasonable, discriminatory and arbitrary and therefore the said classification was rightly set aside by the learned Single Judge of the High Court. At this stage, it is required to be observed that whenever a new benefit is granted and/or new scheme is introduced, it might be possible for the State to provide a cut-off date taking into consideration its financial resources. But the same shall not be applicable with respect to one and single class of persons, the benefit to be given to the one class of persons, who are already otherwise getting the benefits and the question is with respect to revision.

9. *In view of the above and for the reasons staged above, we are of the opinion that the controversy/issue in the present appeal is squarely covered by the decision of this Court in the case of D.S.Nakara (supra). The decision of this Court in the case of D.S.Nakara (supra) shall be applicable with full force to the facts of the case on hand. The Division Bench of the High Court has clearly erred in not following the decision of this Court in the case of D.S.Nakara (supra) and has clearly erred in reversing the judgment and order of the learned Single Judge. The impugned judgment and order passed by the Division Bench is not sustainable and the same deserves to be quashed and set aside and is accordingly quashed and set aside. The judgment and order passed by the learned Single Judge is hereby restored and it is held that all the pensioners, irrespective of their date of retirement, viz. pre-1996 retirees shall be entitled to revision in pension at par with those pensioners who retired post-1996. The arrears be paid to the respective pensioners within a period of three months from today.*

10. *The instant appeal is allowed accordingly. However, in the facts and circumstances of the case, there shall be no order as to costs."*

In view of the consensus arrived at by the learned counsel for the parties, this writ petition is, accordingly disposed of holding that the petitioner shall be covered by the judgment dated 11.7.2019 passed by the Hon'ble Supreme Court in Civil Appeal No.10857 of 2016 (**All Manipur Pensioners Association by its Secretary Vs The State of Manipur & Ors.**

Accordingly, the impugned order dated 29.12.2016 passed by the Commissioner, Higher & Technical Education, Government of Manipur is set aside.

The writ petition is disposed of.

JUDGE

Priyojit

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